Administrative Law

Two topics:

Nondelegation

Judicial deference

A.L.A. Schechter Poultry Corp. v. United States

295 U.S. 495 (1935)

Gundy v. United States

588 U.S. 128 (2019)

But see Federal Communications Commission v. Consumers' Research 606 U.S. _ (2025).

McNeill v. State

375 P.3d 1022 (Nev. 2016)

How to word a statute…

That would let the parole board develop new parole conditions?

In Re Certified Questions From U.S. District Court

958 N.W.2d 1 (Mich. 2020)

“The powers of government are divided into three branches: legislative, executive and judicial. No person exercising powers of one branch shall exercise powers properly belonging to another branch except as expressly provided in this constitution.” Mich. Const. 1963, art. 3, § 2.

Subject Matter

&

Duration

Askew v. Cross Key Waterways

372 So. 2d 913 (Fla. 1978)

“Branches of government. The powers of the state government shall be divided into legislative, executive and judicial branches. No person belonging to one branch shall exercise any powers appertaining to either of the other branches unless expressly provided herein.”
Florida Const. Art. II, § 3.

§ 380.05(2):

(2) An area of critical state concern may be designated only for:

(a) An area containing, or having a significant impact upon, environmental, historical, natural, or archaeological resources of regional or statewide importance.

(b) An area significantly affected by, or having a significant effect upon, an existing or proposed major public facility or other area of major public investment.

(c) A proposed area of major development potential, which may include a proposed site of a new community, designated in a state land development plan.

§ 380.05(2) (Revised by me)

(2) An area of critical state concern may be designated only for **the following, in order of importance**:

(a) An area containing, or having a significant impact upon, **the following, in order of importance:**environmental, historical, natural, or archaeological resources of regional or statewide importance.

(b) An area significantly affected by, or having a significant effect upon, an existing or proposed major public facility or other area of major public investment.

(c) A proposed area of major development potential, which may include a proposed site of a new community, designated in a state land development plan.

Guillou v. State of New Hampshire, Division of Motor Vehicles

503 A.2d 838 (N.H. 1986)

“The director may order any driver’s license issued to any person under the provisions of this title to be suspended or revoked, after due hearing, for any cause which he may deem sufficient.” RSA 263:56.

Texas Boll Weevil Eradication Foundation, Inc. v. Lewellen

952 S.W.2d 454 (Tex. 1997)

Factors to be considered with private delegation:

1. Are the private delegate's actions subject to meaningful review by a state agency or other branch of state government?
2. Are the persons affected by the private delegate's actions adequately represented in the decisionmaking process?
3. Is the private delegate's power limited to making rules, or does the delegate also apply the law to particular individuals?
4. Does the private delegate have a pecuniary or other personal interest that may conflict with his or her public function?
5. Is the private delegate empowered to define criminal acts or impose criminal sanctions?
6. Is the delegation narrow in duration, extent, and subject matter?
7. Does the private delegate possess special qualifications or training for the task delegated to it?
8. Has the Legislature provided sufficient standards to guide the private delegate in its work?

In re Petition to Transfer Territory From High School District No. 6, Lame Deer, Rosebud County, to High School District No. 1, Hardin, Big Horn County

15 P.3d 447 (Mont. 2000)

“Separation of powers. The power of the government of this state is divided into three distinct branches-legislative, executive, and judicial. No person or persons charged with the exercise of power properly belonging to one branch shall exercise any power properly belonging to either of the others, except as in this constitution expressly directed or permitted.” Montana Const., Art. III, § 1.

Republican National Committee v. Eternal Vigilence Action, Inc.

917 S.E.2d 125 (Ga. June 10, 2025)

1. That county election boards conduct a “reasonable inquiry” before certifying the results of an election—(the “Reasonable Inquiry Rule”).

2. That election board members are permitted to examine all election-related documentation before certifying results—(the “Examination Rule”)

3. That precinct workers count ballots by hand after the close of the polls.—(the “Hand Count Rule”).

4. That family members or caregivers provide photo identification when dropping off an absentee ballot of another voter at certain ballot drop-off locations—(the “Drop Box ID Rule”)

5. **That absentee drop boxes at early voting locations be under video surveillance outside of voting hours—(the “Drop Box Surveillance Rule”).**